

25VECV04025 25VECV04025

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-08-20

Motion: DEFENDANT EUGENE DULA, M.D.'S AND MOTION FOR SUMMARY JUDGMENT

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CW%2C08%2F20%2F2026

Source SHA-256: d0649fc66f9da2ced8ffc610abdd74c493d7b64a94b3024bb233c163248344dd

Case Number: 25VECV04025 Hearing Date: August 20, 2026 Dept: W

UPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

ROSALINDA OLSON, individually and as

successor-in-interest to ELIAS OLSON,

deceased, KEVIN OLSON, and ERICK

OLSON,

Plaintiff,

vs.

EUGENE DULA, M.D.

Defendant.

CASE NO: 25VECV04025

[TENTATIVE] ORDER RE:

DEFENDANT EUGENE DULA, M.D.'S

AND MOTION FOR SUMMARY JUDGMENT

Dept. W

8:30 a.m.

August 20, 2026

[TENTATIVE] ORDER: The Court TENTATIVELY GRANTS Moving Defendant's Motion for Summary Judgment, pending a discussion at the hearings.

Background

This is a medical malpractice and wrongful death action. Decedent, Elias Olson, died on July 28, 2024, from cancer. Plaintiffs are Rosalinda Olson, Decedent's surviving spouse, as well as Kevin and Erick Olson, Decedent's sons. Plaintiffs are representing themselves, in pro per. Moving Defendant is Eugene Dula, Decedent's urologist. Plaintiffs allege that Moving Defendant caused Decedent's death when he failed to directly notify Decedent of an abnormal abdominal mass that was identified in a November 2, 2022, CT scan.

On July 22, 2025, Plaintiffs filed their Complaint in this case (25VECV04025), alleging two causes of action: 1) Violation of Statutory Duty Under HSC § 123148, and 2) medical negligence.

On October 29, 2025, this Court GRANTED Moving Defendant's Motion to Strike as to this first cause of action under HSC § 123148. Thus, the only remaining cause of action in this case is Plaintiffs' medical negligence claim.

Simultaneously, Plaintiffs filed suit against Doctor Boris Vaisman. Dr. Vaisman is, apparently, also Decedent's primary care physician. Plaintiffs allege that Dr. Vaisman failed to notify decedent of an abnormal abdominal mass identified in a CT scan on November 2, 2022. On June 10, 2026, this Court granted a Motion to Consolidate these two cases.

On May 6, 2026, Moving Defendant Eugene Dula filed this Motion for Summary Judgment. On August 13, 2026, Plaintiffs filed an ex parte application for leave to file a supplemental expert declaration in support of their Opposition to this MSJ. The Court denied this motion as untimely.

Now, the Court hears Moving Defendant Eugene Dula's Motion for Summary Judgment.

Discussion

Moving Defendant Eugene Dula moves for summary judgment as to the sole claim of medical negligence. (MSJ, p. 2:1-9.)

In analyzing a motion for summary judgment, courts must, 1) determine whether the moving party has negated the opponent's claims; and 2) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.) Thus, summary judgment is granted when, after the Court's consideration of the evidence set forth in the papers and all reasonable inferences accordingly, no triable issues of fact exist, and the moving party is entitled to judgment as a matter of law. (CCP § 437(c); Villa v. McFarren (1995) 35 Cal.App.4th 733, 741.)

Moving Defendant's Initial Burden

Here, the Court concludes that Moving Defendant has met their initial burden. When a plaintiff alleges professional negligence, whereby the defendant is accused of failing to adhere to accepted standards of practice, the issues of standard of care and causation may be established only by qualified expert testimony. (*Stevenson v. Kaiser Foundation Hosp.* (1962) 203 Cal.App.3d 631 [emphasis added].) This is a professional negligence case. (Compl. p. 1.) Therefore, *Stevenson* applies.

Here, Moving Defendant provides the expert declaration of Dr. Edward Yun. (See generally, Yun Decl.) Dr. Yun is a licensed urologist who has practiced medicine for 28 years. (Yun Decl. ¶ 2.) Dr. Yun completed a urological residency in 2004 and has worked as an Assistant Clinical Professor in the Department of Urology at UC Irvine since 2009. (*Ibid.*) Dr. Yun is also currently an attending urologist at the Urology Center of Southern California in Riverside. (*Ibid.*) Dr. Yun also provides a copy of his C.V. (*Id.* Ex. A.) Dr. Yun states that, based on his years of education, training and experience, he is familiar with the standard of care for urologists in Southern California. (*Id.* ¶ 3.)

Based on his training, education, and review of the medical records in this case, Dr. Yun concludes that, “that the care and treatment rendered to patient Elias Olson by Dr. Eugene Dula complied with the standard of care.” (*Id.* ¶ 16.) Dr. Yun also concludes that, “[t]o a reasonable degree of medical probability, nothing Dr. Eugene Dula did or did not do contributed to patient’s alleged injuries and/or death.” (*Id.* ¶ 22.)

Dr. Yun then supports these conclusions with specific facts. For example, Dr. Yun explains that, “[t]he CT on November 2, 2022 noted an “ill-defined hypoattenuated lesion in the left hepatic lobe measuring 6.7 x 6.1 cm. The CT report did not mention cancer in the liver or that the lesion was suspicious, so prospectively, it could have been a benign hepatoma. Therefore, the standard of care did not require Dr. Dula to immediately notify the patient regarding these findings.” (*Id.* ¶ 18.) Dr. Yun also reasons that, “Even if an MRI had been ordered, it most likely would not have been performed within the 25-day period, given typical authorization and scheduling processes” and that, “[e]ven if the CT report indicated suspicion of cancer, the 25 days would not have made a clinical difference in outcome.” (*Id.* ¶¶ 19-20.) These specific facts are important because under California case law, an expert’s opinion rendered without a reasoned explanation of why the underlying facts lead to the ultimate conclusion has no evidentiary value. (*Bushling v. Fremont Medical Center* (2004) 117 Cal. App. 4th 493, 510.)

Based on Dr. Yun’s conclusions and factual support, the Court finds that Moving Defendant has met their initial burden to negate Plaintiffs’ claim of medical negligence.

Plaintiffs’ Shifted Burden

The burden now shifts to Plaintiffs to establish a dispute of material fact as to both causation and breach of the standard of care.

In the context of medical malpractice, when a defendant supports its motion for summary judgment with competent expert testimony that there was no breach of the standard of care, or that the doctor did not cause the plaintiff harm, the plaintiff must present conflicting expert testimony to defeat summary judgment. (*Jambazian v. Borden* (1994) 25 Cal.App.4th 836, 844; *Munro v. Regents of University of California* (1989) 215 Cal.App.3d 977, 984.)

Here, Plaintiffs do not provide an expert declaration in Opposition to this motion. (See generally, Opp.) Thus, Plaintiffs have failed to raise a dispute of material fact as to the issues of breach and causation.

Instead, Plaintiffs request a continuance of this motion under CCP § 437c(h). Under this statute, “[i]f it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just. The application to continue the motion to obtain necessary discovery may also be made by ex parte motion at any time on or before the date the

opposition response to the motion is due.” (CCP § 437c(h).) Here, Plaintiffs assert that they have retained a qualified oncologist as an expert witness in this case, but that the expert needs more time to prepare a written report. (Opp. p. 6:1-4.)

Generally, continuances to allow for crucial discovery on a motion for summary judgment are valuable, as it allows the court to address a claim on the merits. However, the Court has multiple concerns with Plaintiffs’ request for a continuance.

First, Plaintiffs have only made a partial showing of diligence. Under California case law, “a party who seeks a continuance under section 437c, subdivision (h), must show why the discovery necessary to oppose the motion for summary judgment or summary adjudication could not have been completed sooner, and accordingly requires the court to grant the continuance.” (Barganza v. Albertson’s LLC (2021) 67 Cal.App.5th 144, 156 [citing Cooksey v. Alexakis (2004) 123 Cal.App.4th 246, 257].) Here, Plaintiffs assert that they, “acted diligently in attempting to locate a qualified expert willing to work directly with self-represented litigants, and because the expert’s review of the extensive medical records is ongoing.” (Opp. p. 7:6-9.) This argument is circular. Had Plaintiffs worked diligently to acquire an expert for this case, they would have retained an expert and provided an expert declaration in time to oppose this motion. That said, Plaintiff Olson does state that she has worked diligently over the past few months to acquire an expert. This process began in June of 2026, when Plaintiff began to call potential expert witnesses. (Opp. Olson Decl. ¶ 4.) Plaintiff states that this search was extensive, but that most experts declined to work with her because she is self-represented. (Id. ¶¶ 7-8.) This declaration does show some level of diligence. However, this case is more than a year old. The fact that Plaintiffs did not begin their search for an expert until after a motion for summary judgment weighs against a finding of diligence.

Additionally, the fact that Plaintiffs are self-represented does not mean this Court should grant Plaintiffs more leniency. As the California Supreme Court has explained, “mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation.” (Rappleyea v. Campbell (1994) 8 Cal.4th 975, 984.) Given this general rule, the Court is hesitant to grant a continuance based on this argument.

Plaintiffs further argue that the consolidation of this case with Plaintiffs’ case against Defendant Vaisman, “has significantly increased the scope of expert review and preparation necessary to fairly respond to the pending dispositive motions.” (Opp. p. 2:22-23.) This argument is also suspect. The fact that Defendant Vaisman is now also a defendant in this case does nothing to increase the scope or complexity of this pending motion, as this motion is narrowly focused on the single issue of whether Moving Defendant Eula was professionally negligent. In fact, this motion was filed more than a month before this Court ruled on consolidation. Thus, these are two separate issues.

Second, Plaintiffs’ characterization of their expert gives this Court pause as well. Plaintiffs state that they have retained an “oncologist” – A.K.A. a cancer specialist – as their expert in this case. (Opp. p. 6:1.) Moving Defendant Eugene Dula is a urologist, not a cancer specialist. Moving Defendant’s alleged negligence is based on his failure to directly notify decedent Elias Olson of a critical abnormal finding (an abdominal mass) in a CT scan performed on November 2, 2022. Whether Moving Defendant’s failure to notify decedent of this issue constitutes a breach of the standard of care appears to be a question better suited for a urologist, not an oncologist. Thus, it is not clear to this court that Moving Defendant’s retained expert is qualified to opine on the standard of care for urologists. If Plaintiffs’ proposed expert is not qualified to discuss Dr. Eula’s standard of care, then a continuance would be pointless.

However, much of this discussion is irrelevant to the decision in this matter, because an ex parte request for continuance was already made by Plaintiffs, and on August 14, 2026 the request was denied (by a different bench officer). No grounds for reconsideration of that ruling appears in the record.

The Motion for Summary Judgment is granted.

IT IS SO ORDERED, Moving Defendant TO GIVE NOTICE.

August 20, 2026

Judge of the Superior Court